THE STATE OF NEW HAMPSHIRE
SUPREME COURT

No. 2024-0396

State of New Hampshire

v.

Robert Allore

APPEAL PURSUANT TO RULE 7 FROM A JUDGMENT OF THE ROCKINGHAM COUNTY SUPERIOR COURT

BRIEF FOR THE STATE OF NEW HAMPSHIRE

THE STATE OF NEW HAMPSHIRE

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(Fifteen-minute oral argument requested)

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ISSUES PRESENTED

I. Whether consent may be raised as a defense to a charge brought under RSA 632-A:2, I(g)(1).

II. Whether RSA 632-A:2, I(g)(1), is unconstitutionally vague.

III. Whether consent may be raised as a defense to a charge brought under RSA 632-A:2, I(i).

STATEMENT OF THE CASE

The defendant, Robert Allore, was indicted on two counts of aggravated felonious sexual assault (AFSA) in violation of RSA 632-A:2, I(g)(1). *See* App. at 4-5.[1] The indictments alleged alternative theories. One alleged that the defendant sexually penetrated the victim while he had a relationship with her as a medical treatment provider, specifically, a registered nurse, which constituted conduct that was not professionally recognized as ethical or acceptable. *Id*. at 4. The other alleged that the defendant used his position as a medical provider to coerce the victim to have sex with him. *Id*. at 5.

The defendant was also charged with four counts of misdemeanor sexual assault in violation of RSA 632-A:4, I(a). *See id*. at 6-9. The first alleged that the defendant kissed the victim on the lips through concealment or the element of surprise before the victim had a chance to flee or resist. *Id*. at 6. The second alleged that the defendant kissed the victim on the lips during the time he provided her medical treatment, which was not professionally recognized as ethical or acceptable. *Id*. at 7.

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[1] Citations to the record are as follows:
"DB" refers to the defendant's brief;
"DA" refers to the addendum to the defendant's brief;
"App." refers to the appendix to the defendant's brief;
"H1" refers to the transcript of a suppression hearing held on February 12, 2024;
"H2" refers to the transcript of the final pretrial hearing held on February 22, 2024;
"H3" refers to the transcript of the status conference held on March 7, 2024;
"H4" refers to the transcript of the evidentiary hearing held on April 1, 2024;
"H5" refers to the transcript of the final pretrial hearing held on April 29, 2024;
"H6" refers to the transcript of the motions hearing held on May 6, 2024; and
"H7" refers to the transcript of the motions hearing held on May 20, 2024.

The third complaint alleged that the defendant caused the victim to touch his penis with her hand during the time that he provided her medical treatment, which was not professionally recognized as ethical or acceptable. *Id*. at 8. The fourth alleged that the defendant used his position as a treatment provider to coerce the victim into touching his penis with her hand. *Id*. at 9.

In various pleadings and during several hearings, the parties argued over whether consent may be raised as a defense to charges under RSA 632-A:2, I(g)(1) and RSA 632-A:2, I(i). *See* App. at 10-281; H1 at 53-56, 66-68, 76-96; H2 at 5-8; H3 at 59-60; H4 at 28, 99-100; H5 at 5, 7-9; H6 at 4-26; H7 at 2-29. Initially, the court (*Hillaire*, J.) ruled that consent could not be raised as a defense to charges brought under RSA 632-A:2, I(g)(1) or RSA 632-A:2, I(i), but could be raised as a defense to charges brought under RSA 632-A:2, I(g)(2). *See* DA at 57-67.

Subsequently, the court (*Kennedy*, J.) ruled that consent could be raised as a defense to the charges brought under RSA 632-A:2, I(g)(1). *See* H6 at 25-26. After further briefing by the parties and another hearing, the trial court transferred the questions presented in this appeal to this Court. *See* DA at 72-74; H7 at 1-29; App. at 281-90.

STATEMENT OF FACTS

I. FACTUAL BACKGROUND

The defendant was a sixty-one year old man who worked as a registered nurse providing in-home nursing services for Rockingham County Visiting Nurses Association (RVNA). App. at 284. In August 2022, the defendant was assigned to provide care to the victim, an eighty-seven year old woman recovering from a recent hospitalization due to a cardiac issue. *Id*. The victim lived in a senior living facility. *Id*. The defendant treated the victim at her home on six occasions beginning on August 16, 2022, and ending on September 8, 2022. *Id*.

During visits to the victim's home, the defendant frequently engaged her in sexualized conversation and made suggestive comments. *See* App. at 14; H1 at 82-83; H4 at 35; H6 at 55. The victim told police that she sometimes hugged the defendant as a way of extending thanks. App. at 15. On one occasion, the victim leaned in to kiss the defendant on the cheek and the defendant suddenly turned his head and kissed the victim on the lips, including tongue. App. at 15, 284; H4 at 35-36. The victim also told police that after weeks of being overwhelmed by sexual conversation and innuendos she felt like the only way to make the harassment stop was to give in to the defendant's advances. App. at 15; H1 at 83.

The defendant performed oral sex on the victim during his last visit to her home and he caused the victim to touch his penis with her hand, causing him to ejaculate. App. at 15, 284; H1 at 14; H4 at 39. The victim told her son about the sexual assault, who reported the incident to the police. App. at 15; H3 at 9-11.

An investigation by the Bureau of Adult and Aging Services (BAAS) concluded that the incident was unfounded because the victim consented to the encounters. H6 at 46. Nevertheless, the defendant was fired from RVNA due to this incident. H1 at 57-58. The matter was investigated by the police, to whom the defendant admitted the sexual encounter, but claimed that it was consensual. App. at 15-16; H1 at 31. The charges pending in this case resulted.

II. PROCEDURAL HISTORY

In May 2023, the defendant filed a Notice of Consent Defense. App. at 10, 284. In December 2023, the State filed a Motion to Preclude Consent Defense. App. at 13-20, 285. The State argued that consent is not available as a defense to a charge under RSA 632-A:2, I(g)(1) because consent would not negate an element or preclude the harm sought to be prevented by the statute. *Id*. at 16-18.

Relying on this Court's decision in *State v. Ramos*, 149 N.H. 272 (2003), the State also argued that consent is not available as a defense to a charge under RSA 632-A:2, I(i). *Id*. at 19, 285. The State argued that the nature of a prosecution under RSA 632-A:2, I(i), in which the State must prove that sexual contact was achieved through concealment or surprise, obviates the utility of a consent defense because a person cannot consent to something that he or she does not know is going to happen. *See id*. at 19.

In January 2024, the defendant filed two responses to the State's motion — one addressing RSA 632-A:2, I(g)(1) and one addressing RSA 632-A:2, I(i). *Id*. at 21-31, 32-50, 285. With respect to both provisions, the defendant argued that that the legislature did not explicitly preclude a

consent defense to charges brought under RSA 632-A:2, I(g)(1) or I(i), but it would have if it intended to, as evidenced by RSA 632-A:2, I(k), (n). *Id*. at 24-26, 37-38. Also, relying on the plain language of RSA 626:6, the defendant argued that consent is available as a defense because the legislature has not identified medical patients or persons with whom sexual contact is made through concealment or surprise as legally incapable of providing consent to sexual contact. *Id*. at 27, 39.

Speaking specifically to RSA 632-A:2, I(g)(1), the defendant argued that it was "clearly limited to circumstances where the sexual penetration takes place as a part of the medical treatment—for example in the case of Larry Nassar." *Id*. at 34-35, 40-41. The defendant argued that if the State's interpretation of RSA 632-A:2, I(g)(1), was correct, then the statute was unconstitutionally vague and overbroad. *Id*. at 46-49.

The defendant averred that, under the State's reading of the statute, the phrases comprising RSA 632-A:2, I(g)(1) — such as "not professionally recognized as ethical or acceptable" — are "so vague and imprecisely defined" that no reasonable person could discern the statute's meaning or whether it applied to them. *Id*. at 46-48. The defendant also contended that the State's interpretation caused the law to sweep up "protected activity along with criminal activity." *Id*. at 48-49.

With respect to RSA 632-A:2, I(i), the defendant argued that the State's reliance on *Ramos* was misplaced. *Id*. at 29-30. The defendant contended that the *Ramos* Court did not hold that consent is precluded as a defense to a charge under RSA 632-A:2, I(i). *Id*. at 29. Rather, the Court held that consent was the defendant's theory of the case, not his theory of

defense. *Id*. Accordingly, the defendant asserted that *Ramos* was limited to its facts and was not applicable to this case. *Id*. at 30.

A hearing on the State's Motion to Preclude Consent Defense was held on February 12, 2024. *See* App. at 285; H1 at 1. Following that hearing, the court (*Hillaire*, J.) issued a written order granting the State's motion and finding that the defendant was precluded from raising a consent defense to the charges brought under RSA 632-A:2, I(g)(1) and RSA 632-A:2, I(i). *Id*. at 285; DA at 57-67.

Looking first to RSA 632-A:2, I(i), the court found that *Ramos* "strongly support[ed] the State's position that [the statute] does not allow for a consent defense." DA at 60. The court adopted this Court's reasoning in *Ramos* that, if the jury found beyond a reasonable doubt that the State had proven that sexual contact occurred through concealment or surprise, then the jury necessarily would have to find that the victim did not consent. *Id*. at 60-61. Accordingly, the court concluded that consent would not negative any element of RSA 632-A:2, I(i). *Id*. at 61.

The court rejected the defendant's argument that the legislature would have explicitly precluded a consent defense to charges brought under RSA 632-A:2, I(i), as it had done with respect to subparagraphs I(k) and I(n), if it intended to do so. *Id*. The court noted that "several other subsections of RSA 632-A:2, I, do not explicitly bar a consent defense, yet such a defense would necessarily be unavailable." *Id*. (citing RSA 632-A:2, I(h), (j)(2), (I)(l)). The court explained that the legislature had no need to preclude a consent defense with respect to certain offenses proscribed by RSA 632-A:2, I, because the nature of the crimes "render[ed] the victim's consent irrelevant." *Id*. Accordingly, "the legislature's failure to explicitly

preclude the consent defense in certain subsections of RSA 632-A:2, I, [was] not outcome determinative." *Id*.

Turning to RSA 632-A:2, I(g)(1), the court was not persuaded by the defendant's argument that the provision was limited to sexual penetration that occurred ostensibly as part of therapy or medical treatment. *Id*. at 62. That argument was undercut by the legislature's prohibition on sexual penetration between a medical provider and his or her patient "within one year of termination" of the treating relationship. *Id*. at 62-63. The court found that, "[i]n essence," the legislature had determined "that all sexual relationships between treatment providers and patients that occur during, or less than one year after, a treating relationship are inherently nonconsensual (assuming such conduct is not professionally recognized as ethical or acceptable)." *Id*. at 63.

Thus, the trial court ruled that consent was not available as a defense to the charges brought under RSA 632-A:2, I(i) or I(g)(1). *Id*. at 62, 64. However, the court ruled that consent was available to defend against the charges brought under RSA 632-A:2, I(g)(2). *Id*. at 65-66. The court found that "consent of the victim would inherently negative the element of coercion in RSA 632-A:2, I(g)(2)." *Id*. at 66. The court rejected the State's argument rooted in *State v. Foss*, 148 N.H. 209 (2002). *Id*. at 65-66. The court explained that *Foss* was "plainly tailored to RSA 632-A:2, I(n)[.]" *Id*.

The defendant filed a motion for reconsideration, which was denied. *Id*. at 53-64, 285. Thereafter, the parties engaged in significant pretrial litigation surrounding the element requiring the State to prove that the defendant "acted in a manner or for purpose not professionally recognized as ethical or acceptable" came into focus. *Id*. at 285. The State intended to

prove that element by relying on RSA chapter 326-B, the Nurse Practice Act, and through the testimony of an expert whose opinions would rely on the code of ethics published by the American Nursing Association (ANA). *Id*. at 271-73, 285-86.

For its part, the defense sought to introduce evidence of the defendant's employer's workplace policies as evidence of what conduct was "professionally recognized as ethical or acceptable." *Id*. Based on those materials, which were not discovered until April 2024, the defendant filed a Motion to Introduce Evidence Related to the Issue of Consent, to which the State objected. *Id*.

In May 2024, the court (*Kennedy*, J.) granted the defendant's motion to introduce evidence of consent. DA at 68-71. The court explained that its previous ruling precluding the defendant from raising a consent defense to the charges brought under RSA 632-A:2, I(g)(1) was "premised on the assumption that the trial evidence would establish a universal ethical bar on sexual relationships between nurses and patients." *Id*. at 69. The court found that the "newly discovered RVNA polices" called that assumption into question. *Id*.

The court maintained that if consensual sexual relationships between nurses and patients are not professionally recognized as ethical or acceptable, then "RSA 632-A:2, I(g)(1), should be treated as a strict liability offense." *Id*. If such relationships are recognized as ethical or acceptable in some circumstances, however, "then consent would be a defense to that element of the pending RSA 632-A:2, I(g)(1), charges." *Id*. at 69-70. In the same order, the court agreed with the defense that the State

must prove that the defendant knowingly engaged in sexual contact that was not professionally recognized as ethical or acceptable. *Id*. at 70.

The court went a step further during a hearing on the defendant's motion and ruled from the bench that "[t]he [d]efense will come in." H6 at 25. Seeking clarification, the State asked whether "consent can be used as a defense, or consent can just be spoken about at the trial?" *Id*. at 26. The court clarified that "[c]onsent can be used as a defense" and that it would be up "to the jury" to determine "what type of professional or ethical standards" to adopt. *Id*. If it were the ANA's standards, "then that's strict liability." *Id*. In any event, the court ruled that "consent does apply." *Id*.

The court issued an interim order directing the parties to submit supplemental briefing on the applicability of RSA chapter 326-B, the Nurse Practice Act, to this case as a means for establishing "professional and ethical standards" for registered nurses. DA at 72-73; App. at 287. The parties each submitted pleadings related to the Nurse Practice Act. App. at 194-99, 271-73. A hearing on the court's interim order was held on May 20, 2024. H7 at 1-29; App. at 287. After that hearing, the court issued an order directing the parties to submit a request for an interlocutory appeal. DA at 74. The court deferred ruling on the "issues discussed at the hearing surrounding statutory interpretation, the consent defense, and jury instructions pending the outcome of the interlocutory appeal." *Id*.

This interlocutory appeal followed.

SUMMARY OF THE ARGUMENT

I. CONSENT IS NOT A DEFENSE TO THE CHARGES UNDER RSA 632-A:2, I(g)(1) IN THIS CASE.

This Court cannot declare that consent is or is not always a legal defense to charges brought under RSA 632-A:2, I(g)(1). Whether consent is available as a legal defense in a prosecution under RSA 632-A:2, I(g)(1) will depend on whether the professional standards that actually control the defendant's professional conduct and that he is alleged to have violated permit consent to be raised as a legal defense. In this case, consent is not available as a legal defense to the RSA 632-A:2, I(g)(1) related charges because, even if the victim consented to the sexual penetration or contact alleged, that would not negate an element of the offense or preclude the harm the statutes seek to prevent. RSA 626:6, I.

RSA 632-A:2, I(g)(1) and RSA 632-A:4, I(a) prohibit medical professionals like nurses from sexually penetrating or contacting a patient during a treating relationship if such sexual penetration or contact is "not professionally recognized as ethical or acceptable." The defendant was a licensed nurse at the time he allegedly sexually penetrated and contacted the victim. The Nurse Practice Act, RSA chapter 326, governed defendant's professional conduct and expressly identifies "engaging in sexual conduct with a client" and "touching a client in a sexual manner" as professional misconduct. RSA 326-B:37, II(m). The plain language of RSA 326-B:37, II(m) covers both consensual and non-consensual sexual conduct and touching and contains no language suggesting consent is a defense to such misconduct. Consequently, in this case, there is no element

of the RSA 632-A:2, I(g)(1) related charges that is negated by a showing of consent, nor would consent preclude the harm the statutes at issue seek to prevent. Consent is therefore not available to the defendant as a legal defense to his RSA 632-A:2, I(g)(1) related charges.

II. RSA 632-A:2, I(g)(1) IS NOT VAGUE.

The defendant's vagueness challenge fails for several reasons. First, the defendant advances a facial attack on RSA 632-A:2, I(g)(1), but cannot legally do so because RSA 632-A:2, I(g)(1) does not involve a fundamental right. *State v. MacElman*, 154 N.H. 304, 307 (2006); *see State v. Hollenbeck*, 164 N.H. 154, 163 (2012) (holding that RSA 632-A:2, I(g) criminalizes sexual relationships of the kind "where consent might not easily be refused" and therefore no constitutionally protected right to engage in that conduct exists under the Federal or State Constitution).

Second, even if the defendant may assert a facial vagueness claim, he premises it on an unreasonable construction of RSA 632-A:2, I(g)(1). RSA 632-A:2, I(g)(1) applies to medical professionals whose license to practice their profession is governed by specific professional standards imposed by law. It would be nonsensical to read RSA 632-A:2, I(g)(1) to impose on professionals standards of conduct that do not actually control their professional license, practice, and conduct. Construing RSA 632-A:2, I(g)(1) sensibly to encompass only those professional standards imposed by law that actually control a professional's license, practice, and conduct eliminates the defendant's vagueness concerns and supplies an appropriate narrowing construction of RSA 632-A:2, I(g)(1) if the Court believes the

statute's breadth creates a constitutional problem. *Attorney General v. Hood*, 2025 N.H. 3, ¶ 28; *State v. Smagula*, 117 N.H. 663, 666 (1977).

Third, the defendant does not appear to advance an as-applied vagueness challenge, but, even if he did, RSA 632-A:2, I(g)(1) is unmistakably clear as-applied to him. The professional standards that control the defendant's license to practice as a nurse in New Hampshire expressly label the conduct the defendant has been charged with as misconduct. RSA 326-B:37, II(m). Accordingly, RSA 632-A:2, I(g)(1) provided the defendant with a reasonable opportunity to know that his conduct was outlawed. *MacElman*, 154 N.H. at 309.

III. CONSENT IS NOT A DEFENSE TO CHARGES UNDER RSA 632-A:2, I(i)(1).

Finally, consent is not available as a defense to a charge under RSA 632-A:2, I(i). That provision prohibits sexual penetration by concealment or surprise before the victim has a chance to flee or resist. Thus, to find the defendant guilty of all the elements of that crime, the jury would necessarily have to find that the victim did not consent. *Ramos*, 149 N.H. at 276. Therefore, since proof of the element of surprise or concealment inherently requires proof of lack of consent, consent cannot negate that element. Nevertheless, evidence that the victim consented may be relevant to the defendant's theory of the case even if a legal defense of consent is not available to him. *See id*. at 274.

ARGUMENT

I. CONSENT IS NOT AVAILABLE AS A DEFENSE TO THE RSA 632-A:2, I(g)(1) RELATED CHARGES IN THIS CASE.

The consent of an adult patient may not be raised as a defense to charges brought under RSA 632-A:2, I(g)(1) against a defendant unless the controlling professional standard the defendant is alleged to have violated would permit him to raise consent as a defense under RSA 626:6, I. Under RSA 626:6, I, "[t]he consent of the victim to conduct constituting an offense is a defense if such consent negatives an element of the offense or precludes the harm sought to be prevented by the law defining the offense." Thus, as a threshold matter, the entire offense for which the defendant is charged must be isolated and examined.

RSA 632-A:2, I(g)(1), provides:

> I. A person is guilty of the felony of aggravated felonious sexual assault if such person engages in sexual penetration with another person under any of the following circumstances:
>
> …
>
> (g) When the actor provides therapy, medical treatment or examination of the victim and in the course of that therapeutic or treating relationship or within one year of termination of that therapeutic or treating relationship:
>
> (1) Acts in a manner or for purposes which are not professionally recognized as ethical or acceptable;

To do determine whether a defendant has acted "in a manner or for purposes which are not professionally recognized as ethical or acceptable," this Court should look to those professional standards that the defendant must by law abide in his profession.

At the time of the charged conduct, the defendant was licensed as a New Hampshire nurse under RSA chapter 326-B, the Nurse Practice Act, and subject to its restrictions. The purpose of the Nurse Practice Act is, in part, "to protect the people of the state from the unauthorized, unqualified, and improper application of services by individuals in the practice of nursing." RSA 326-B:1. Licensees under RSA chapter 326-B "are accountable to clients, the nursing profession, and the board for complying with the requirements of this act . . . ." RSA 326-B:1.

RSA 326-B:37 is titled, "Disciplinary Action; Misconduct." It identifies different types of misconduct that may subject a licensed nurse to discipline. The specific misconduct identified by RSA 326-B:37, II(m) includes "[a]ctions or conduct that include, but are not limited to . . . failure to maintain professional boundaries with clients or family members, use of excessive force upon or mistreatment or abuse of any client, engaging in sexual conduct with a client, touching a client in a sexual manner, requesting or offering sexual favors or language or behaviors suggestive of the same . . . ." (emphases added).

The defendant is therefore properly alleged to have violated RSA 632-A:2, I(g)(1) because his alleged conduct – engaging in sexual conduct with a client and touching a client in a sexual manner – also violates RSA 326-B:37, II(m), the specific and controlling professional standard that designates the defendant's charged conduct as unacceptable. Whether

consent may be raised as a legal defense to this offense turns on whether "consent negatives an element of the offense or precludes the harm sought to be prevented by the law defining the offense." RSA 626:6, I.

Consent does not negative an element of the offense with which the defendant has been charged. RSA 632-A:2, I(g)(1) prohibits a medical professional from sexually penetrating a patient during a treating relationship if the act of sexual penetration is done in a manner or for purposes which are not professionally recognized as ethical or acceptable. RSA 326-B:37, II(m) prohibits nurses licensed in New Hampshire from engaging in sexual conduct with a patient and from touching a patient in a sexual manner and labels those actions "misconduct." Consent does not negative any of the above elements, and lack of consent is not an element of the charged crimes. *See State v. Hollenbeck*, 164 N.H. 154, 159 (2012) (holding that "lack of consent" is not an "element" of RSA 632-A:2, I(g)(1)).

Consent also does not preclude the harm sought to be prevented by the law defining the offense. RSA 326-B:37, II(m) seeks to prevent licensed nurses from engaging in sexual conduct with patients and from touching patients in a sexual manner. The harm sought to be prevented is any sexual conduct or sexual touching within the licensed nurse-patient treatment relationship. RSA 632-A:2, I(g)(1) and RSA 632-A:4, I(a) vindicate a similar end through the criminal law. These statutory provisions protect persons whose ability to consent to sexual contact may be compromised by the inherent nature of the treatment relationship and seek to maintain the integrity of the nursing profession. *See Hollenbeck*,

164 N.H. at 164. Writing a consent defense into these statutes would defeat their respective purposes.

Accordingly, the consent of an adult patient may not be raised as a defense to a charge brought under RSA 632-A:2, I(g)(1) unless the controlling professional standard the defendant has violated would permit the defendant to raise consent as a defense under RSA 626:6, I. In this case, the controlling professional standard, RSA 326-B:37, II(m), does not provide, either expressly or implicitly, that consent is a defense to its violation. Consent does not negative any element of that professional standard nor does consent preclude the harm sought to be prevented by the law defining the charges. A consent defense is therefore unavailable to the defendant with respect to his RSA 632-A:2, I(g)(1) related charges.

A. Defendant's Arguments Contrary Arguments Are Unpersuasive.

The defendant's principal argument is that RSA 632-A:2, I(g)(1), even in combination with RSA 326-B:37, II(m), is ambiguous because it is silent as to consent. The defendant's argument, however, mistakes statutory breadth for ambiguity. "[A] statute is not ambiguous simply because it is broad." *IUE-CWA v. Visteon Corp. (In re Visteon Corp.)*, 612 F.3d 210, 221 (3d Cir. 2010). By employing intentionally broad language like "not professionally recognized as ethical or acceptable," RSA 632-A:2, I(g)(1), and "sexual conduct with a client" or "touching a client in a sexual manner," RSA 326-B:37, II(m), the legislature "avoids the necessity of spelling out in advance every contingency to which a statute could apply." *IUE-CWA*, 612 F.3d at 221 (internal quotations omitted). Whether consent

is available as a legal defense to a broadly worded criminal statute is determined in accordance with RSA 626:6, I, which, as set forth above, reveals that consent is not a legal defense to the RSA 632-A:2, I(g)(1) related charges in this case.

The defendant also argues that if the legislature intended to preclude consent as a defense to a charge under RSA 632-A:2, I(g)(1), then it would have done so explicitly as it did in RSA 632-A:2, I(k) and (n). DB at 29-30. Further, he asserts that, if consent is precluded as a defense to a charge under RSA 632-A:2, I(g)(1), then subparagraph I(g)(2) would be a nullity. DB at 30. Both arguments are unpersuasive.

The legislature tethered RSA 632-A:2, I(g)(1) to a medical professional's legally binding professional conduct standards. Consequently, consent may be a legal defense to a charge brought under RSA 632-A:2, I(g)(1), if the controlling professional standard allows consent as a defense or if consent would negative liability under it, RSA 626:6, I. Under this construction of the statute, where the legislature is deferring to the controlling professional standards in the field, there is no need wholly or explicitly to forbid consent as a legal defense in all instances, as the legislature has done in RSA 632-A:2, I(k) and (n).

RSA 632-A:2, I(g)(2) is also not rendered a nullity if consent is not recognized as a legal defense under RSA 632-A:2, I(g)(1) in all instances. As the trial court recognized, RSA 632-A:2, I(g)(2) is a "broader catch-all provision" that prohibits medical practitioners and therapists from coercing patients into having sex during the treating relationship and for one year after the termination thereof independent of any ethical or professional standards. *See* DA at 64; *see, e.g.*, RSA 326-L (recognizing "Professional

Art Therapy" but referencing no formal licensing or regulation of the occupation or professional conduct standards that apply to it).

The defendant also argues that RSA 632-A:2, I(g)(1) only applies when a medical professional penetrates a patient under the false pretense that the penetration is for the purpose of medical treatment, as in the case of Larry Nassar. DB at 30-32. But the plain language of the statute does not support such a narrow interpretation. RSA 632-A:2, I(g) prohibits unprofessional sexual relationships between medical providers and patients during "the course of" the treating relationship and "within one year of termination" of the same. RSA 632-A:2, I(g). It does not distinguish between sexual penetration or contact engaged in honestly or consensually or under false pretenses. Also, because RSA 632-A:2, I(g) covers sexual misconduct that occurs after the termination of the treating relationship, the defendant's narrow interpretation of the statute is untenable.

To try to overcome that, the defendant contends that "the 'one-year' extension clause applies only to (g)(2)." DB at 34. His argument on this point is rooted in a complicated legislative history, *see* DB at 34-38, which is unnecessary because the "within one year language" in subparagraph I(g) is plainly separate from subsection I(g)(2) and the statute in this regard is not ambiguous. It is clear from the face of the statute that all of the language contained in RSA 632-A:2, I(g), applies to subsections I(g)(1) and I(g)(2). Therefore, this Court need not look to legislative history for further indication of legislative intent on that point. *State v. Foss*, 148 N.H. 209, 211 (2002).

This Court should also reject the defendant's argument that evidence of the victim's consent is "intrinsic" to the charges under RSA 632-A:2,

I(g)(1). For reasons already discussed, a consent defense is not available to the defendant in this case because the governing professional standards identify that it is professional misconduct for a licensed nurse to engage in sexual conduct with a client and do not expressly or implicitly indicate that such conduct is acceptable if the client consents to it. Accordingly, in this case, evidence of the victim's consent is not relevant to the charges, let alone intrinsic to it.

Finally, the defendant argues that the legislature's use of the word "may," rather than "shall," in certain provisions of the Nurse Practice Act, indicate that sexual conduct between a licensed nurse and a client may not be professional misconduct in all circumstances. *See* DB at 41. For example, the defendant observes that RSA 326-B:37, II, states that the Nursing Board "may" discipline licensed nurses for the conduct identified therein but does not require as much. *See id*. But this only demonstrates that the legislature gave the Nursing Board discretion to determine whether to impose professional discipline for misconduct. The fact remains that sexual conduct between a licensed nurse and a client is specifically identified as professional misconduct under RSA 326-B:37, II(m) and is therefore "not professionally recognized as ethical or acceptable," RSA 632-A:2, I(g)(1).

II. RSA 632-A:2, I(g)(1) IS NOT UNCONSTITUTIONALLY VAGUE.

The defendant argues that RSA 632-A:2, I(g)(1) is unconstitutionally vague.[2] *See* DB at 43-49. Specifically, the defendant contends that the vagueness "problem resides in the not-professionally-recognized-as-ethical-or-acceptable element." *Id*. at 43. The defendant asserts that the phrases "professionally recognized" and "ethical or acceptable" are not defined by the statute and "invite ambiguity." *Id*. at 45.

"The constitutionality of a statute presents a question of law, which [this Court] review[s] *de novo*." *State v. Parr*, 175 N.H. 52, 59 (2022). "A statute can be impermissibly vague for either one of two independent reasons: (1) it fails to provide people of ordinary intelligence a reasonable opportunity to understand what conduct it prohibits; or (2) it authorizes or even encourages arbitrary and discriminatory enforcement." *Id.* (citing *State v. MacElman*, 154 N.H. 304, 307 (2006)). "A party challenging a statute as void for vagueness bears a heavy burden of proof in light of the strong presumption favoring a statute's constitutionality." *Id.* "Moreover, mathematical exactness is not required in a penal statute, nor is a law invalid merely because it could have been drafted with greater precision." *Id.*

[2] The defendant argued in the trial court that the statute was unconstitutionally overbroad. *See* DA at 62; App. at 35, 45, 48-49, 288-89. That question is also raised in the interlocutory appeal statement. *See* App. at 288-89. However, that argument has not been expressly advanced and analyzed by the defendant on appeal and, accordingly, is therefore deemed waived. *See State v. Cooper*, 168 N.H. 161, 171 (2015) (stating that "any issues raised in the defendant's notice of appeal, but not briefed, are deemed waived.").

A. The Defendant Does Not Have A Viable Facial Vagueness Claim In This Case.

The defendant appears to argue only that RSA 632-A:2, I(g)(1) is unconstitutionally vague on its face. *See id*. at 43-49. However, "[w]here a defendant's vagueness claim does not involve a fundamental right, a facial attack on the challenged statutory scheme is unwarranted." *MacElman*, 154 N.H. at 307. No fundamental right is involved here. As this Court held in *State v. Hollenbeck*, RSA 632-A:2, I(g) criminalizes sexual relationships of the kind where consent might not easily be refused and therefore no constitutionally protected right to engage in that conduct exists under the Federal or State Constitution. 164 N.H. at 163. The defendant's facial vagueness challenge therefore fails.

B. Even If The Defendant's Facial Vagueness Claim Is Viable, It Fails Because People Of Ordinary Intelligence Can Understand What Conduct RSA 632-A:2, I(g)(1) Prohibits.

The defendant claims that RSA 632-A:2, I(g)(1) is unconstitutionally vague because it does not expressly define "professionally recognized" or "ethical or acceptable" nor does it tell therapists and medical professionals whether consensual sexual relationships in the course of a treating relationship are permitted.

The defendant's analysis, however, is premised on an unreasonable construction of RSA 632-A:2, I(g)(1) that ignores certain interpretive canons including the absurdity and constitutional avoidance canons. It also

mistakes legislative breadth for ambiguity and ignores the fact that the legislature has tied a defendant's criminal liability under the statute to a professionally recognized standard that controls the defendant's professional conduct. Consequently, even if a facial vagueness claim could properly be advanced, it should be rejected.

RSA 632-A:2, I(g)(1) provides a person of ordinary intelligence a reasonable opportunity to understand what conduct it prohibits.[3] The plain language of the statute prohibits sexual penetration between a medical practitioner and a patient during a treating relationship or within one year after the termination of such relationship if the sexual penetration "is not professionally recognized as ethical or acceptable." Whether the sexual penetration "is not professionally recognized as ethical or acceptable" must be determined by reference to the professional standards that control the medical practitioner's license and professional conduct. *See, e.g.*, RSA 329-B:30 (identifying as sexual misconduct "[s]exual relations with a client or patient or a former client or patient" under psychology practice act); RSA 330-A:36 (identifying as sexual misconduct "sexual relations with a client or former client" in the mental health practice act[4]); N.H. Admin. R. Med.

[3] The defendant does not appear to develop an argument that RSA 632-A:2, I(g)(1) raises concerns of arbitrary or discriminatory enforcement. That issue should therefore be deemed waived.

[4] Under this act, a "mental health practitioner" means "persons licensed under this chapter as pastoral psychotherapists, clinical social workers, school social workers, clinical mental health counselors, or marriage and family therapists. For purposes of this chapter, the term clinical social worker shall include independent clinical social worker." RSA 330-A:2, VII.

501.02(h)[5] (requiring licensees to "adhere to the Code of Medical Ethics: Current Opinions With Annotations (June 2016 Edition) as adopted by the American Medical Association"); AMA Code of Medical Ethics, Opinion 9.1.1 Romantic or Sexual Relationships with Patients ("Romantic or sexual interactions between physicians and patients that occur concurrently with the patient physician relationship are unethical."). [6]

The defendant seems to advance an interpretation of the phrase "not professionally recognized as ethical or acceptable" as permitting prosecutors to apply any professionally recognized standards to a defendant including professional standards that the defendant is not required by law to follow and unwritten standards that a particular professional in the field might believe do or should exist as a matter of practice. Such an interpretation of the statute is unreasonable, absurd, and should be rejected.

This Court will "not construe a statute . . . to lead to an absurd result that the legislative body could not have intended." *Working Stiff Partners, LLC v. City of Portsmouth*, 172 N.H. 611, 620 (2019). "Thus, as between a reasonable and unreasonable meaning of the language used, the reasonable meaning is to be adopted." *Petition of Poulicakos*, 160 N.H. 438, 444 (2010). This Court will also "construe a statute so as to avoid

[5] This regulation applies to "RSA 329, physicians and surgeons" and "RSA 328-D, physician assistants." N.H. Admin. R. Med. 101.01(a).

[6] Available at: https://code-medical-ethics.ama-assn.org/ (home page), https://code-medical-ethics.ama-assn.org/opinions?search=Romantic+or+Sexual+Relationships+with+Patients (Opinion 9.1.1), https://code-medical-ethics.ama-assn.org/sites/amacoedb/files/2022-08/9.1.1.pdf (PDF).

bringing it into conflict with the constitution." *State v. Paul*, 167 N.H. 39, 45 (2014).

The defendant's boundless interpretation of RSA 632-A:2, I(g)(1) would subject a New Hampshire licensed therapist or medical practitioner treating patients in New Hampshire to the professional mental health practices or professional medical standards of Nevada, the model standards of an entity to which the New Hampshire therapist or medical professional is not required to conform, and the unwritten expectations of another professional in the field. In other words, such an interpretation of RSA 632-A:2, I(g)(1) would require therapists or medical practitioners to conform their conduct to every professional code or standard in existence, formal or informal, domestic or international, written or unwritten, a task that would be impossible to do and that would raise significant due process concerns. The legislature could not possibly have intended such an unreasonable, absurd, and bizarre result, and this Court should not interpret RSA 632-A:2, I(g)(1) to create that result.

However, if the Court believes that RSA 632-A:2, I(g)(1) sweeps that broadly[7], the Court should apply a narrowing judicial construction to cure that concern. As this Court has held, "[a]lthough guidelines do not appear in a statute, a reviewing court may, by resort to judicial construction, cure an otherwise unconstitutionally vague provision." *State*

[7] Though the defendant has not separately briefed overbreadth on appeal, his vagueness argument does overlap to some degree with the concept of overbreadth. He is essentially asserting that RSA 632-A:2, I(g)(1) is so broad that it sweeps virtually any professional standard into it thereby allowing the State to prosecute defendants for violating professional standards that do not legally control their professional license and conduct, including the unwritten expectations of other professionals in the field.

v. Smagula, 117 N.H. 663, 666 (1977). A similar concept exists in the overbreadth context. *See Attorney General v. Hood*, 2025 N.H. 3, ¶27

Construing RSA 632-A:2, I(g)(1) sensibly to encompass only those professional standards imposed by law that actually control a defendant's professional license and conduct eliminates the defendant's vagueness concerns and supplies an appropriate narrowing construction of RSA 632-A:2, I(g)(1) if the Court believes the statute's breadth creates a constitutional problem.

Accordingly, the defendant's facial vagueness claim should be rejected.

C. The Defendant Has Not Advanced An As-Applied Vagueness Claim, But Even If He Did, Such A Claim Would Not Succeed.

An as-applied vagueness challenge requires this Court to "determine whether the statute provided [the defendant] with a reasonable opportunity to know that [his] particular conduct was proscribed by the statute." *MacElman*, 154 N.H. at 309. RSA 632-A:2, I(g)(1) criminalizes sexual penetration when the actor provides medical treatment or examination to the victim and, in the course of that treating relationship, "[a]cts in a manner or for purposes which are not professionally recognized as ethical or acceptable."

The defendant was a licensed New Hampshire nurse when the charged conduct occurred and therefore subject to the Nurse Practice Act.

The Nurse Practice Act specifically lists "engaging in sexual conduct with a client" as misconduct that is not professionally recognized as ethical or acceptable for licensed New Hampshire nurses. RSA 326-B:37, II(m). Consequently, RSA 632-A:2, I(g)(1) provided the defendant with a reasonable opportunity to know that his alleged conduct was prohibited. Accordingly, to the extent that the defendant has raised an as-applied vagueness claim in this case, it should be rejected. *See Appeal of Plantier*, 126 N.H. 500, 513 (1985) ("[c]ourts are reluctant to strike down statutes on the ground of vagueness where the statute 'by [its] terms or as authoritatively construed [applies] without question' to those litigants before the court.").

D. Consent Is Not Available As A Defense To Charges Brought Under Rsa 632-A:2, I(I).

The defendant was charged with four violations of RSA 632-A:4, I(a), *see* App. at 6-9, which makes it a misdemeanor to subject a person to sexual contact under any of the circumstances named in RSA 632-A:2. One complaint alleged that the defendant kissed the victim on the lips through concealment or by the element of surprise. App. at 6. The predicate crime for that charge was RSA 632-A:2, I(i), which prohibits sexual penetration when it is achieved "through concealment or by the element of surprise . . . before the victim has an adequate chance to flee or resist." RSA 632-A:2, I(i).

Relying on *Ramos*, the trial court ruled that consent was not available as a defense to a charge under RSA 632-A:2, I(i). *See* DA at 59-62. In *Ramos*, the defendant argued that the trial court erroneously denied

his request for a jury instruction on consent. 149 N.H. at 272. In affirming the trial court, this Court explained the difference between a theory of defense and a theory of the case and that the defendant was relying on a theory of the case. 149 N.H. at 272-274. Whether to instruct the jury on the defendant's theory of the case "is an issue reserved to the trial court's sound discretion." *Ramos*, 149 N.H. at 274.

Nevertheless, the *Ramos* Court assumed, without deciding, that the defendant was entitled to a jury instruction on consent. *Id*. at 275. Ultimately, the Court held that "the trial court's failure to give the instruction [on consent] was not reversible error because it caused no prejudice to the defendant." *Id*. at 276. This Court adopted the trial court's reasoning that "if the jury found the State proved all elements of the charged variant of aggravated felonious sexual assault, it would have to find the victim did not consent. Likewise, if the jury found the State did not prove the element of concealment or surprise, the jury would be required to acquit the defendant." *Id*.

The trial court correctly recognized that this Court's "endorsement of the trial court's reasoning in *Ramos* strongly supports the State's position that RSA 632-A:2, I(i), does not allow for a consent defense." DA at 60. Proof of lack of consent is inherent in proving the element of concealment or surprise because one cannot consent to that which he or she is unaware of. And since proof of the element necessarily precludes a reasonable finding of consent, it naturally follows that consent cannot negate that element. *See* RSA 626:6, I.

The defendant's argument to the contrary is not persuasive. The defendant argues that *Ramos* is "potentially" distinct from this case "insofar

as the trial court here proposes to bar [the defendant] from introducing evidence of N.C.'s consent." DB at 51. The defendant "contends only that he should not be barred, pre-trial, from eliciting evidence of N.C.'s consent to the sexual act charged under RSA 632-A:2, I(i)." DB at 52.

But the State has not argued that the defendant is under an absolute bar to introduce evidence of the victim's consent in advancing his theory of the case, only that he is not availed of a legal defense of consent. As the *Ramos* Court explained, there is a distinction between a theory of the case and a legal defense of consent. "To use consent as a theory of defense, the defendant had to present evidence admitting the substance of the allegations against him, but pointing to facts which otherwise excused, exonerated or justified his actions, precluding criminal liability." *Ramos*, 149 N.H. at 274. "In other words, the defendant had to present evidence showing a different legal significance for the facts alleged against him, in order to use consent as his theory of defense." *Id*.

In this case, a legal defense of consent is not available because if the defendant admitted the substance of the State's allegations — that he kissed the victim through concealment or surprise — then he would necessarily concede that the victim did not consent. *See Ramos*, 149 N.H. at 274, 276. However, that does not preclude the defendant from adopting a theory of the case to which evidence of the victim's consent might be relevant.

CONCLUSION

For the foregoing reasons, the State respectfully requests that this Honorable Court affirm the judgment below.

The State requests a fifteen-minute oral argument.

Respectfully Submitted,

THE STATE OF NEW HAMPSHIRE

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March 18, 2025

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CERTIFICATE OF COMPLIANCE

I, Sam M. Gonyea, hereby certify that pursuant to Rule 16(11) of the New Hampshire Supreme Court Rules, this brief contains less than 9,500 words, which is fewer than the words permitted by this Court's rules. Counsel relied upon the word count of the computer program used to prepare this brief.

March 18, 2025 *<u>/s/ Sam M. Gonyea</u>*
Sam M. Gonyea

CERTIFICATE OF SERVICE

I, Sam M. Gonyea, hereby certify that a copy of the State's brief shall be served on Christopher Johnson, Esq., counsel for the defendant, through the New Hampshire Supreme Court's electronic filing system.

March 18, 2025 *<u>/s/ Sam M. Gonyea</u>*
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